

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 14, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR - Marian Orr, COUNCIL MEMBERS – Rocky Case, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also attending: Kris Jones, City Clerk. [Clerk's note: the pledge of allegiance was not recited due to the absence of a flag]

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 23, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southeast of the intersection of Powderhouse Road and Carlson Street. Seth Lloyd, Planning and Development Department, advised the annexation request was submitted by the landowner, provided information on the property and reviewed requirements of and compliance with annexation conditions contained in state statutes. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Upon inquiry related to if scales have been purchased, Chief Brian Kozak, Police Department, explained the Police Department has some scales that Highway Patrol loaned them a few years ago that they may be able to keep. Chief Kozak advised that if they are unable to keep the scales, the city would purchase scales with drug forfeiture funding. Support was expressed to Chief Kozak, the trucking industry and City employees for their work involved with the ordinance. Motion carried. Voting "yes" – all members of the governing body present with exception of Mr. Case, Mr. Luna and Mr. Shanor voting "no". (#4333)

ORDINANCE – 3rd READING – Amending Section 2.84.070, Board of Adjustment, of Chapter 2.84, Miscellaneous Boards and Commissions, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board

of Adjustment. Charles Bloom, Director of Planning and Development, advised the ordinance corrects cross references to the Board of Adjustment in Title 17. Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. (#4334)

ORDINANCE –3rd READING – Amending Section 15.52.060(B), Notification of Issuance or Denial-Appeal, and Section 15.52.100, Variances, of Chapter 15.52, Solar Access Permit System, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, to correct cross references to the Board of Adjustment. Charles Bloom, Director of Planning and Development, advised the ordinance corrects cross references to Title 17 in Title 15. Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4335)

ORDINANCE –3rd READING – Establishing a Planned Unit Development (PUD) District for property generally located northwest of the intersection of North Gate Avenue and Yellowstone Road. Seth Lloyd, Planning and Development Department, advised the zone change request to PUD would allow for a duplex development. Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” - all members of the governing body present. (#4336)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located southeast of the intersection of Powderhouse Road and East Carlson Street – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to P Public District for a tract of land generally located southeast of the intersection of Powderhouse Road and East Carlson Street – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create specific use standards for the use ‘Mini Storage’ – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE –1st READING – Amending Section 2.04.020, Mayor-Election-Term of Office, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the city of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – To rededicate unknown funds and unused donations from various accounts within the City of Cheyenne’s Agency Fund. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. Esquibel. Mr. Luna moved to amend by substitute dated 12/8/2020 which includes the amendment made at the 12/7/2020 Finance Committee meeting which removes the line item title “County Pockets/Urban Planning Office” in an amount of \$23,278.08 to be rededicated to the “Loan Annexation Fund”, seconded by Mr. Esquibel. Support

was expressed for the substitute as the funds will go towards development of county pockets. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6104)

[CA] RESOLUTION – Repealing a portion of Resolution No. 5951 which pertains to the dedication of General Fund Reserves to design and build a second level on the Cheyenne Municipal Court Building. Motion (per Consent Agenda) carried. (#6105)

RESOLUTION – Certifying *CONNECT 2045*: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne for the City of Cheyenne and the Cheyenne Urban Area. Tom Mason, Director of MPO, advised the resolution is presenting the update known as Connect 2045 and explained the plan has been in development for 1.5 years between city, county, WYDOT and other steering committee members. He noted the County Commissioner’s have adopted the plan and the next step is city approval and MPO Policy Committee for final adoption and approval of the plan. Mr. Mason provided information on the transportation plan noting it is updated every 5 years and plan adoption allows federally funded transportation projects to move forward. Mr. Mason advised recently a small list of technical corrections was provided to be made to the final document. Mayor Orr expressed appreciation to Allison Fluitt with Kimley Horn for her work on the project. Mr. Case moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#6106)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for The Enclave at Northgate, a replat of a portion of Lots 6 and 7, all of Lot 8, and the east half of Lots 9 thru 12, Block 19, North Cheyenne 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of North Gate Avenue and Yellowstone Road). Motion (per Consent Agenda) carried. (#6107)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant to replace playground safety surfacing (revenue to the city) – referred to Finance Committee.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Capital Heights Addition, Third Filing, a replat of all of Lots 3 and 4, Block 1018, Capital Heights Addition, Cheyenne, Laramie County, Wyoming (located west of and adjacent to Dillon Avenue north of Foyer Avenue, currently addressed as 3810 Dillon Avenue) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Approving a Special Use Permit for oil and gas support services for Lot 1, Block 1, Plains Industrial Park, 2nd Filing, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] Grant agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program officer overtime and client support (CRMC LEAD Grant). Motion (per Consent Agenda) carried. (#7265)

[CA] Grant award agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2020 in the amount of \$115,000.00, for the Cheyenne Regional Response Team #7 (DHS Grant Code: EMW-2020-SS-00062) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Peak Wellness, Alcohol Receiving Center, to provide alcohol and drug detoxication services to individuals (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services (General Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center (Replaces Contract No. 7165 approved 4/27/2020) – referred to Finance Committee.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex (Replaces Contract No. 7166 approved 4/27/2020) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7216 between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program (CRMC LEAD Grant). Motion (per Consent Agenda) carried. (#7216)

[CA] Contract Modification #1 to Contract #7117 between the City of Cheyenne and Western Research and Development, Ltd. for additional design services for the 2020 Signal Upgrade Design Services Contract (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried. (#7117)

[CA] Contract Modification #1 to Contract #7181 between the City of Cheyenne and Waste Management of Colorado, Inc., Denver CO, for Waste Management Recycling Services to extend the term of the agreement to December 31, 2021 (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7241 between the City of Cheyenne and Mid-America Pool Renovation, Inc., for the Cheyenne Aquatic Center Main Pool Shell Resurfacing Project (Specific Purpose Sales Tax Overage Funds) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7207 between the City of Cheyenne and Front Range Roofing Systems, LLC, for Fleet Maintenance Facility and Parks Maintenance Facility Roof Replacements (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-16-21 for furnishing three (3) new greens mowers, for the City of Cheyenne, Golf Division (Golf Improvement Fund) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Appointments of Jeffrey Merton O'Holleran to the Laramie County Juvenile Services Joint Powers Board; Kat Yates to the Community Action Laramie County Board of Directors and Stephanie McMackin and Kristin Lee to the Cheyenne Housing Authority Board. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointments).

Reappointments of Kristina Richardson and Jared Dixon to the Mayor's Council for People with Disabilities Board; Dennis Humphrey, Jason Stephen, Jason Powell and Paul Pomeroy to the Contractor Licensing Board; Patrick Green and Timothy E. Wilson to the Personnel Commission; Tucker Fagan and James W. Hearne to the City/County Frontier Park Improvements Joint Powers Board; Russell Pollard to the Police Civil Service Commission; Mark C. Hardee to the Fire Civil Service Commission; David S. Benner, Charles C. Young II and Max B. Carre' to the Historic Preservation Board; Thomas Smith to the Housing & Community Development Advisory Council; William Sean Casey and Gabriel Herrera to the Building Code Board of Appeals; Anthony R. Laird to the Board of Adjustment and Philip Griggs, Brian Tyrrell and Ted C. Gertsch to the Planning Commission. Mr. Luna moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present with the exception of Dr. Rinne voting "no" and Mayor Orr who did not vote (mayoral appointments).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:34 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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